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Case Number: 25PSCV02589 Hearing Date: July 1, 2026 Dept: H

Abdoush v. Dandana

Café and Banquet, Inc., et al.,

Case No. 25PSCV02589

ORDER ON

DEMURRERS AND MOTIONS TO STRIKE

1. Defendant Rami Wardeh's Demurrer to
Plaintiff's First Amended Complaint is OVERRULED.

2. Defendant Rami Wardeh's Motion to Strike
First Amended Complaint is DENIED.

3. Defendant Dandana Café and Banquet Inc.'s Demurrer
to Plaintiff's First Amended Complaint is OVERRULED.

4. Defendant Dandana Café and Banquet Inc.'s Motion
to Strike First Amended Complaint is DENIED.

Background

Plaintiff

Philip Abdoush ("Abdoush") alleges as follows:

Hani

C. Karam ("Karam"), Rami A. Wardeh ("Wardeh") and Mazen K. Manjah ("Manjah") wanted to purchase the "Dandana" restaurant located at 765 W. Route 66 in Glendora ("Restaurant") from Deeb I. Deeb ("Deeb"). An escrow had already been

opened by Deeb in his purchase of the Restaurant from DCB Food, Inc. ("DCB"), but prior to closing, Deeb sought to sell his ownership interest therein to Karam and Wardeh. Karam and Wardeh claimed to be short of funds to purchase the Restaurant and represented to Abdoush and Manjah that if they provided them with \$250,000.00, they would be able to purchase the Restaurant from Deeb, with Abdoush and Manjah each receiving a 25% ownership in the Restaurant. They assured Abdoush that they would handle the corporate structure and purchase of the Restaurant, that ownership of the Restaurant would be through Dandana Cafe and Banquet, Inc. ("Dandana") and that Abdoush would own 25% of the Restaurant through his ownership of 25% of Dandana. Abdoush agreed and provided the \$250,000.00, which covered his and Manjah's payment; this was paid to Deeb. Almost immediately after payment, Karam and Wardeh ceased their efforts to purchase the Restaurant from Deeb, Deeb ceased his efforts to purchase the Restaurant from DCB and Ghazi Fedail ("Fedail") and escrow was cancelled. Prior to the cancellation of escrow, Abdoush provided Karam with \$75,000.00, which Karam represented was for his work to renovate the Restaurant. Abdoush has not received any ownership interest in the Restaurant or a refund.

On

April 2, 2026, Abdoush filed a First Amended Complaint ("FAC"), alleging causes of action against Dandana, DCB, Wardeh, Karam, Estate of Fedail, Doe 1, Deeb, Karam and Wardeh, as Co-Trustees of the Manjah/Karam/Wardeh Trust and Does 2-25 for: (1) Fraud, (2) Conversion, (3) Breach of Fiduciary Duty, and (4) Money Had and Received.

On May

18, 2026, Karam filed a cross-complaint, asserting causes of action against Abdoush, Manjah and Roes 1-50 for: (1) Breach of Fiduciary Duty, (2) Fraud by Concealment, (3) Intentional Interference with Contractual Relations, and (4) Equitable Indemnity.

On May

28, 2026, Wardeh filed a cross-complaint, asserting causes of action against Abdoush, Manjah and Roes 1-50 for: (1) Breach of Fiduciary Duty, (2) Fraud by Concealment, (3) Intentional Interference with Contractual Relations, and (4) Equitable Indemnity.

A Case

Management Conference and an Order to Show Cause Re: Failure to File Proof of Service on FAC set for August 26, 2026.

1.

Wardeh's Demurrer to FAC

Legal

Standard

A demurrer may be made on the grounds that, inter alia, the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).)

"A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905 [citations omitted].) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) "[A] demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction placed on an instrument pleaded therein, or facts impossible in law, or allegations contrary to facts of which a court may take judicial knowledge." (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732 [citations omitted].)

Discussion

Wardeh

demurs to the entirety of the FAC, on the basis that it was untimely filed without leave of court. Wardeh additionally demurs to the second cause of action (i.e., for Conversion), on the basis that it fails to state facts sufficient to constitute a cause of action.

At

the outset, the Court observes that Wardeh's first argument is not a recognized basis for demurrer. The grounds for a demurrer are identified in Code of Civil Procedure section 430.10 and limited to the following:

"(a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading.

(b) The

person who filed the pleading does not have the legal capacity to sue.

(c) There

is another action pending between the same parties on the same cause of action.

(d) There

is a defect or misjoinder of parties.

(e) The

pleading does not state facts sufficient to constitute a cause of action.

(f) The

pleading is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible.

(g) In

an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.

(h) No

certificate was filed as required by Section 411.35."

The

Court summarily overrules Wardeh's demurrer to the entirety of Plaintiff's FAC on this basis. [FN]

Next, "[c]onversion

is the wrongful exercise or dominion over the property of another. The elements of a conversion claim are: (1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property rights; and (3) damages." (Burlesci v. Petersen (1991) 68 Cal.App.4th 1062, 1066.)

Plaintiff's

second cause of action identifies two sums: the \$250,000 Dandana Payment and the \$75,000.00 Improvement Funds. (FAC, ¶ 50.) Wardeh's demurrer is directed solely to the \$75,000.00 Improvement Funds and fails to address the \$250,000 Dandana Payment whatsoever. Additionally, a review of Paragraphs 51 and 52 reflects that the conversion cause of action as directed against Wardeh pertains to the \$250,000 Dandana Payment payment only.

Wardeh's demurrer to the second cause of action is overruled.

2. Wardeh's

Motion to Strike FAC

Legal

Standard

Pursuant to Code of Civil

Procedure section 436, "the court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." The grounds for a motion to strike must "appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 437.)

Discussion

Wardeh

moves the Court for an order striking out Plaintiff's FAC on the basis that it was untimely filed without leave of court. Wardeh moves to strike out the second cause of action for conversion on the grounds that it was not sufficiently pled.

Wardeh's

motion to strike is summarily denied. As stated above, Wardeh's request to strike out the FAC reads as an improper motion for reconsideration. Wardeh's second argument, regarding the sufficiency of the conversion cause of action, is a ground for demurrer, which was raised and overruled by the Court above.

3. Dandana's

Demurrer to FAC

Legal

Standard

See Demurrer #1.

Discussion

Dandana

demurs to the entirety of the FAC, on the basis that it was untimely filed without leave of court. Dandana additionally demurs to the second cause of

action (i.e., for Conversion), on the basis that it fails to state facts sufficient to constitute a cause of action.

The

Court incorporates its analysis on the demurrer brought by Wardeh with respect to the untimeliness argument and the conversion cause of action. Again, Plaintiff's second cause of action identifies two sums: the \$250,000 Dandana Payment and the \$75,000.00 Improvement Funds. (FAC, ¶ 50.) Dandana's demurrer is directed solely to the \$75,000.00 Improvement Funds and fails to address the \$250,000 Dandana Payment whatsoever. Dandana's demurrer is overruled.

4.

Dandana's Motion to Strike FAC

Legal

Standard

See Motion to Strike #1.

Discussion

Dandana's motion to strike is denied. The Court incorporates its analysis on Motion to Strike #1 herein.

[FN] Additionally, on January 26, 2026, Wardeh filed a "Motion to Dismiss Plaintiff's Complaint," which was heard and denied by the Court on April 29, 2026, before the instant demurrer was filed. Wardeh's request essentially seeks reconsideration of the Court's April 29, 2026 order without adhering to the requirements of Code of Civil Procedure section 1008.